

District- Dhaka

In the Supreme Court of Bangladesh
 High Court Division
 (Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. _____ of 2024

In the matter of:

An application under section 498 of the Code of Criminal Procedure.

-And-

In the matter of:

Md. Abul Kashem Miah

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Md. Jhangir Zamadder, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 21st January 2024

This is an application under Section 498 of the Code of Criminal Procedure for bail.

In this case under Sections 302 of the Penal Code the petitioner allegedly murdered his wife and the petitioner has also made a confessions under Section 164 of the Code of Criminal Procedure which appears to be inculpatory in nature.

In view of above materials on record we are not inclined to grant bail to the petitioner at this point of time but we feel it necessary to pass a direction upon the Trial Court below for conclusion of the trial of the case expeditiously.

Accordingly, we are directing the learned Additional Metropolitan Session Judge, 2nd Court, Dhaka to conclude the trial of the case within 6(six) months from the date of receipt of this order without allowing any adjournment beyond 15(fifteen) days.

But if he fails to conclude the trial within above period he will have to explain in writing to this Court through the Registrar General as to why the trial could not be concluded and he shall also consider the petition for bail if any filed by the petitioners with sympathy and in accordance with law.

The Commissioner, Dhaka Metropolitan Police is directed to ensure that prosecution witnesses are produced before the Trial Court on the date to be fixed by the Court without any fail.

Let copies of this order be sent to the learned Additional Metropolitan Session Judge, 2nd Court, Dhaka and Dhaka Metropolitan Police Commissioner.

With above direction this application is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER